tion Project of the Yakima Indian Reservation, Washington. The purpose of this amendment is to increase the annual operation and maintenance assessment rate for the Ahtanum Project from $2.75 to $3.25; the Toppenish-Simcoe Project from $2.25 to $3.25 and the Wapato Project from $7.25 to $8.00 under paragraph (a) and from $7.00 to $8.00 under paragraph (b).

Interested persons were given 30 days within which to submit written comments, suggestions or objections with respect to the proposed amendment. A large number of water users both Indian and non-Indian and the Yakima Tribe protested the proposed increase in rates and requested a hearing in order to give them an opportunity to state their position. A public hearing was held on November 5, 1963, at the Indian meeting house near Wapato, Washington. Complete coverage of this hearing together with all correspondence in the case has been carefully considered and found not to justify further delay in the amendment of regulations. Accordingly, the proposed amendment is hereby adopted without change and is set forth below.

Section 221.1 under the center head Ahtanum Indian Irrigation Project, Washington, is amended to read as follows:

§ 221.1 Charges.

Pursuant to the provisions of the acts of August 1, 1914 and March 7, 1928 (38 Stat. 583 and 45 Stat. 210; 25 U.S.C. 385, 387), the operation and maintenance charges on lands of the Ahtanum Indian Irrigation Project, Yakima Indian Reservation, Washington, for the calendar year 1964 and subsequent years until further notice, are hereby fixed at $3.25 per acre per annum for each irrigable acre of land to which water can be delivered from the project works.

Section 221.73 under the center head Toppenish-Simcoe Indian Irrigation Project, Washington, is amended to read as follows:

§ 221.73 Charges.

Pursuant to the provisions of the acts of August 1, 1914 and March 7, 1928 (38 Stat. 583 and 45 Stat. 210; 25 U.S.C. 385, 387), the operation and maintenance charges for the lands under the Toppenish-Simcoe Irrigation Project, Yakima Indian Reservation, Washington, for the calendar year 1964 and subsequent years until further notice, are hereby fixed as follows:

All lands for which application for water is made and approved by Project Engineer, per acre	$3.25

Section 221.86 under the center head Wapato Indian Irrigation Project, Washington, is amended to read as follows:

§ 221.86 Charges.

Pursuant to the provisions of the acts of August 1, 1914 and March 7, 1928 (38 Stat. 583, 45 Stat. 210; 25 U.S.C. 385, 387), the operation and maintenance charges on assessable lands under the Wapato Indian Irrigation Project, Yakima Indian Reservation, Washington, for the calendar year 1964 and subsequent years until further notice are hereby fixed as follows:

(a) Minimum charges for all tracts in noncontiguous single ownership	$8.00
(b) Flat rate upon all farm units or tracts for each assessable acre	8.00
(c) Storage operation and maintenance. For all lands with a storage water right, known as "B" lands, in addition to other charges per acre	.50

(38 Stat. 583, 45 Stat. 210; 25 U.S.C. 385, 387)

JOHN O. CROW,
Deputy Commissioner.

[F.R. Doc. 64-661; Filed, Jan. 23, 1964; 8:46 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3306]

[Montana 061709]

MONTANA

Power Site Restoration No. 611; Partly Revoking Indian Power Site Reserve (BLM 129534) and Power Site Reserve No. 397; Vacating Power Withdrawal Project No. 2135

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818), as amended, and pursuant to the determination of the Federal Power Commission docketed as DA-173-Montana, it is ordered as follows:

1. The Departmental Order of June 29, 1908, creating Indian Power Site Reserve and the Executive Order of September 10, 1913, creating Power Site Reserve No. 397 are hereby revoked so far as they affect the following-described lands:

MONTANA PRINCIPAL MERIDIAN

T. 22 N., R. 20 W.,
Sec. 5, lots 6 and 7;
Sec. 7, S½;
Sec. 8, lot 8, NW¼NW¼ and W½SE¼SW¼;
Sec. 17, lots 1, 2 and 3;
Sec. 18, lots 1, 2, 3, 4, 5, 6, 7, and 8.
T. 22 N., R. 21 W.,
Sec. 11, lots 1 to 9 incl., and SW¼SE¼;
Sec. 12, lots 1, 2, 3, 4 and W½ lot 5;
Sec. 13, lots 1, 2, 3, 4, 5, NE¼NE¼, SE¼NW¼, E½NW¼SE¼, and W½W½NW¼SE¼;

Containing approximately 1,289 acres.

Most of the lands are required for the dam site, powerhouse, operator's quarters and switchyard of Project No. 5, and are not subject to disposal.

2. In DA-173, Montana, the Federal Power Commission vacated the withdrawal of May 22, 1953, created by the filing of an application for preliminary permit for Project No. 2135 so far as it affects the following-described lands:

T. 22 N., R. 21 W.,
Sec. 11, lots 1, 2, 3, 4, 5 and 9.

3. The Federal Power Commission has determined that the value of the following-described lands will not be injured or destroyed for purposes of power development by location, entry or selection under the public land laws, subject to the provisions of section 24 of the Federal Power Act, as amended, and further subject to the prior rights of the licensee (Rocky Mountain Power Company) for Project No. 5, its successors or assigns and the easement imposed by law:

MONTANA PRINCIPAL MERIDIAN

T. 22 N., R. 20 W.,
Sec. 7, SE¼SE¼;
Sec. 8, NW¼NW¼.
T. 22 N., R. 21 W.,
Sec. 11, lots 1, 2, 3, 4, 5 and 9 and, all portions of the following-described subdivisions lying within the project boundary, being those lands lying below the 2893 foot contour, as more accurately described on maps designated Exhibits K sheets 1 to 10 inclusive (F.P.C. Nos. 5-51 to 60 inclusive), filed in the Commission May 3, 1940 and Exhibits K sheets 11 to 15 inclusive (F.P.C. No. 5-97 to 101 inclusive), filed in the Commission January 2, 1946.
T. 22 N., R. 19 W.,
Sec. 6, lot 2;
Within Baptist Villa
block 2, lots 1, 2, 3 and 4;
block 3, lots 1 to 8 incl.;
block 4, lots 1 to 7 incl.
T. 23 N., R. 19 W.,
Sec. 3;
Within Festou Villa
block 8, lots 4 and 5;
block 9, lots 1, 2 and 3;
block 10, lots 1, 2, 10 and 11;
block 11, lots 5, 8 and 9;
Sec. 7;
Within Finley Point Villa
block 1, lots 12 and 13;
block 2, lots 1, 3 and 4;
block 3, lot 1;
block 6, lots 1, 2, 3 and 4;
Sec. 10;
Within Festou Villa
block 12, lots 1, 2, 4, 5, 6 and 7;
Sec. 15;
Within Station Villa
block 1, lots 1, 2 and 3;
Sec. 18;
Within Pollard Villa
block 1, lots 1 to 6 incl.;
block 4, lots 1 to 7 incl.;
Sec. 19; lots 6 and 7 (old lot 4)
Within Alson Villa
block 1, lot 4;
Sec. 20;
Within Alson Villa
block 1, lots 5 and 6;
block 2, lots 5, 6 and 7;
Sec. 22, NW¼NW¼;
Sec. 31;
Within Baptist Villa
block 1, lot 1.
T. 24 N., R. 19 W.,
Sec. 9;
Within Orchard Villa
block 3, lot 8;
block 4, lots 1, 2 and 8.
Sec. 21, lots 1, 2 and 3;
Sec. 22, lot 1;
Within Blue Grade Villa
block 1, lot 1;
Sec. 27;
Within Blue Grade Villa
block 7, lots 1 and 2;

Sec. 34;
Within Festou Villa
block 2, lots 1, 2 and 5;
block 3, lots 1 to 7 incl.;
block 4, lots 4 and 5.
T. 25 N., R. 19 W.,
Sec. 5, lot 3.
T. 22 N., R. 20 W.,
Within Polson Townsite
public reserves nos. 1, 2 and 3;
block 1, lot 6;
block 2, lots 1, 8 and 11;
A triangular tract in northwest corner of block 5;
block 11, lots 4A and 4B;
Sec. 5, lots 6 and 7;
Sec. 7, SW¼SE¼;
Sec. 8, lot 8 and W½SE¼SW¼;
Sec. 17, lots 1, 2 and 3;
Sec. 18, lots 1 to 8 incl.
T. 23 N., R. 20 W.,
Sec. 3, S½SW¼NW¼, SW¼SE¼NW¼, W½SE¼SE¼NW¼, NW¼SW¼ and SW¼SE¼;
Sec. 5;
Within White Swan Villa
block 10, lots 1, 2, 3 and 4;
block 11, lots 1 and 2;
Sec. 10, NW¼NE¼;
Secs. 2, 3, 10, 11 and 15;
Within Safety Bay Villa
block 2, lots 1, 3, 4 and 5;
block 3, lots 3 to 10 incl., and 19;
block 4, lots 1, 2, 3, 9, 10, 11, 12, 16, 19, 20, 22 and 23;
block 5, lots 1 to 6 incl.;
block 6, part of lot 1, lots 2, to 18 incl.;
block 7, lots 1 to 11 incl.;
block 8, lots 1 and 4;
block 9, lots 2, 3, 4, 5, 6, 9, 10, 11, 12 and 13;
block 10, lots 2 to 10 incl.;
block 11, lots 1 to 10 incl.;
block 12, lots 1 to 12 incl.;
block 13, lots 1, 2 and 3;
block 14, lots 1, 2, 3, 4, 6 and 7;
block 15, lots 1 to 8 incl.;
block 16, lots 1, 2, 3, 4, 5, 13, 14, 15 and 16;
Sec. 12;
Within Narrows Villa
block 1, lots 1, 2 and 3;
block 2, lot 1;
block 3, lot 1.
T. 24 N., R. 20 W.,
Secs. 7, 8 and 17;
Within Grouse Villa
block 1, lots 1 and 2;
block 2, lot 4;
block 3, lots 2 and 3;
block 4, lots 3, 5 and 9;
block 5, lots 1, 2 and 5;
block 7, lots 4 and 6;
Sec. 18;
Within Wild Horse Villa
block 2, lots 1, 2, 3, 6, 7, and part of lot 8;
Secs. 27, 28, 33 and 34;
Within Matterhorn Villa
block 1, lots 1, 2, 3 and 4;
block 2, lots 3, 4, 5, 6, 7 and 8;
block 3, lots 1, 2, 4 and 5;
block 4, lot 6;
block 5, lots 1 to 8 incl.;
block 6, lots 1 to 6 incl.;
block 7, lots 1, 3, 6 and 7;
block 8, lots 1 to 5 incl.;
Secs. 29, 30 and 32;
Within White Swan Villa
block 1, lot 1;
block 2, lots 4 and 5;
block 3, lots 5, 6 and 8;
block 4, lots 1, 2, 3, 4, 7, 13, 14, 15 and 16;
block 5, lots 1, 2, 3, 6, 7, 10, 11 and 12;
block 7, lots 3, 4 and 5;
block 8, lot 4;
block 9, lots 4, 5 and 8;
Sec. 30;
Within Larches Villa
block 2, lots 2, 3, 4 and 5;
Secs. 34 and 35;
Within Safety Bay Villa
block 1, lots 1, 2, 3, 4, 5, 6 and 7;
block 6, part of lot 1.
T. 26 N., R. 20 W.,
Sec. 3, lot 1;
Sec. 4, lot 8.
T. 27 N., R. 20 W.,
Sec. 22, lot 5.
T. 28 N., R. 20 W.,
Sec. 30, lot 9.
T. 24 N., R. 21 W.,
Sec. 3;
Within Dayton Townsite
blocks 9 and 22;
Secs. 12, 13 and 14;
Within Daycrom Villa
block 1, lot 1;
block 2, lot 1;
block 3, lots 1, 2, 4 and 7;
block 4, lots 1, 6 and 7;
Sec. 13;
Within Wild Horse Villa
block 1, lots 1 to 8 incl.;
block 2, part of lot 8, lots 10, 11, 13, 14, 15, 16, 17, 18 and 21;
Sec. 15;
Within Cromwell Villa
block 3, lot 7;
block 4, lot 1;
block 5, lots 1, 2, 3 and 5;
Sec. 19, lot 2;
Secs. 24 and 25;
Within Wilgus Villa
block 1, lots 1 to 17 incl.;
Sec. 25;
Within Armo Villa
block 1, lots 5 and 7;
block 2, lots 1 and 4;
block 3, lot 1;
Secs. 27 and 34;
Within Big Arm Villa
block 3, lots 1, 3, 4 and 5;
block 4, lots 4 and 5;
block 7, lots 1 and 2;
block 8, lot 1;
block 9, lots 2, 3 and 4;
Sec. 33;
Within Big Arm Townsite
block 1, lot 1;
block 2, lots 1, 2, 3 and 4;
block 3, lot 6;
block 4, lots 1, 2 and 3;
block 5, lots 1, 2, 3, 4, 5 and 6;
block 6, lots 3, 4, 5 and 6;
block 7, lots 3 and 4.
T. 28 N., R. 21 W.,
Sec. 22, NE¼SW¼.

4. With the exception of some or all of the lands in Ts. 24, 26, 27 and 28 N., R. 20 W., and T. 28 N., R. 21 W., the lands in Paragraph 3 are a part of the Flathead Indian Reservation. The areas affected by this order total in the aggregate about 15,800 acres of public and non-public land.

5. Subject to any valid existing rights, the requirements of applicable law, rules and regulations, and the provisions of any existing withdrawals the public lands described in this order are hereby opened to filing of applications, selections and locations in accordance with the following:

(a) Until 10:00 a.m. on July 17, 1964, the State of Montana shall have the preferred right of application to select any of the restored land for school indemnity purposes, as provided by section 2(c) of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852). The State of Montana also has a more limited preferred right of application for the restored land for highway easement or for highway material site purposes as provided by section 24 of the Act of June 10, 1920, as amended May 28, 1948 (62 Stat. 275; 16 U.S.C. 818).

(b) All valid applications and selections under the nonmineral public land laws others than preference right applications from the State of Montana, presented at or prior to 10:00 a.m. on July 17, 1964, will be considered as simultaneously filed at that hour. Rights under such applications and sections filed after that hour will be governed by the time of filing.

6. The lands have been open to applications and offers under the mineral leasing laws, and to location under the United States mining laws subject to the provisions of the Act of August 11, 1955 (69 Stat. 682; 30 U.S.C. 621).

7. Persons claiming preference rights based upon valid settlement, statutory preference or equitable claims must enclose properly corroborated statements in support of their application setting forth all facts relevant to their claims.

8. Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, 1245 North 29th Street, Billings, Montana, 59101.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 17, 1964.

[F.R. Doc. 64-662; Filed, Jan. 23, 1964; 8:46 a.m.]

[Public Land Order 3307]

[Washington 04779]

WASHINGTON

Power Site Cancellation No 196; Partly Cancelling Power Site Classification No. 349; Opening Lands Subject to Section 24 of the Federal Power Act, Project No. 2145

By virtue of the authority contained in the Act of March 3, 1879 (20 Stat. 394; 43 U.S.C. 31), and in section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818), as amended, and pursuant to the determinations of the Federal Power Commission docketed as DA-190-Washington, dated July 24 and December 6, 1963, it is ordered as follows:

1. The departmental order of June 22, 1944, creating Power Site Classification No. 349, is hereby cancelled so far as it affects the following-described lands:

WILLAMETTE MERIDIAN

T. 25 N., R. 21 E.,
Sec. 20, SE¼NW¼ and NE¼SW¼.

The areas described aggregate approximately 80 acres. A portion of the NE¼SW¼ is withdrawn for Project No. 2145.

2. In DA-190-Washington, July 24, 1963, the Federal Power Commission determined that the value of the affected portions of the following-described lands so far as they are included in Project No. 2145 not already occupied by virtue of rights acquired prior to withdrawal of the lands for power purposes will not be injured or destroyed for purposes of power development by location thereon of the proposed highway right-of-way, sub-

ject to the provisions of section 24 of the Federal Power Act, and subject to the prior rights of the licensee for Project No. 2145, its successors and assigns, to use the lands for purposes as contemplated in the license:

T. 25 N., R. 21 E.,
Sec. 20, NE¼SW¼;
Sec. 30, NE¼SE¼.

Containing approximately 80 acres.

3. The land lies adjacent to the Rocky Reach Dam reservoir on the Columbia River, about 15 miles north of the City of Wenatchee, Washington. Topography is rough, broken and steep. Soils are shallow and rocky.

4. Until 10:00 a.m. on July 17, 1964, the State of Washington shall have the preferred right of application to select any of the restored land except those in Project No. 2145 for school land indemnity purposes, as provided by section 2(c) of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 852). The State of Washington also has a more limited preferred right of application for the restored land for highway easement or for highway material site purposes as provided by section 24 of the Act of June 10, 1920, as amended May 28, 1948 (62 Stat. 275; 16 U.S.C. 818).

5. At 10:00 a.m. on July 17, 1964, the lands other than those in Project No. 2145 shall be open to the operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications, except preference right applications from the State, received prior to 10:00 a.m. on July 17, 1964, shall be considered as simultaneously filed at that time. Those filed thereafter shall be considered in the order of filing.

6. The land has been open to applications and offers under the mineral leasing laws, and except those in Project No. 2145, to location under the United States mining laws subject to the provisions of the Act of August 11, 1955 (69 Stat. 682; 30 U.S.C. 621).

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 17, 1964.

[F.R. Doc. 64-663; Filed, Jan. 23, 1964; 8:46 a.m.]

[Public Land Order 3308]

[Colorado 0112733]

COLORADO

Partly Revoking Reclamation Withdrawal, Blue River-South Platte Project

By virtue of the authority contained in section 3 of the Act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), it is ordered as follows:

1. The departmental order of August 23, 1943, withdrawing land for reclamation purposes in connection with the Blue River-South Platte Project, is hereby revoked so far as it affects the following described lands:

SIXTH PRINCIPAL MERIDIAN

T. 3 S., R. 74 W.,
Sec. 26, lots 6 to 23 incl., and lots 56 to 73 incl.;
Sec. 27, lots 1 to 41 incl., lots 43, 45, 47, 48, 51, 52, 53, and lots 56 to 60 incl.;
Sec. 28, lots 1 to 10 incl., lot 23, lots 25 to 36 incl., and lots 42, 43 and 44;
Sec. 33, lots 1, 2, 3, 8, 9, 10, 21, and NW¼SW¼;
Sec. 34, lots 3, 4, 5, lots 8 to 14 incl., lots 17, 18, 28, 29, and 30.
T. 4 S., R. 74 W.,
Sec. 4, lots 3, 4, and S½NW¼;
Sec. 5, lots A, B, C, D, E and F, lots 1, 6, 7 and 8, N½SW¼NE¼, SW¼SW¼NE¼, and E½E½NE¼SE¼;
Sec. 8, lots 1 to 4, incl., lots 6 to 12 incl., lots 26, 27, lots 30 to 37 incl., lots 39, 40, 41, 43, 50, 55, 57, 58, 59, 60, 75, 76, 77, 86, 87, 89, 92, 93, 94, 98, and 99;
Sec. 17, lots 1, 9, and 10.

The areas described aggregate 1,174.85 acres.

2. Subject to any valid existing rights and equitable claims, the requirements of applicable law, rules and regulations, and the provisions of any existing withdrawals, the public lands released from withdrawal by this order are hereby opened to filing of applications, selections and locations in accordance with the following:

(a) Until 10:00 a.m. on July 17, 1964, the State of Colorado shall have a preferred right of application to select the lands in accordance with and subject to the provisions of subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852), and the regulations in 43 CFR.

(b) All valid applications and selections under the nonmineral public land laws other than any from the State of Colorado presented at or prior to 10:00 a.m. on July 17, 1964, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

(c) The lands have been opened to applications and offers under the mineral leasing laws. They will be opened to location under the United States mining laws after 10:00 a.m. on July 17, 1964.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Denver, Colorado.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 17, 1964.

[F.R. Doc. 64-664; Filed, Jan. 23, 1964; 8:46 a.m.]

[Public Land Order 3309]

[Sacramento 071209]

CALIFORNIA

Withdrawal for Forest Service Experiment Station

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1962, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws, and reserved for use of the Forest Service, Department of Agriculture, as an experiment station:

MOUNT DIABLO MERIDIAN

T. 10 N., R. 10 E.,
Sec. 22, SW¼SW¼.

The area described contains 40 acres.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 17, 1964.

[F.R. Doc. 64-665; Filed, Jan. 23, 1964; 8:47 a.m.]

[Public Land Order 3310]

[Wyoming 0195835]

WYOMING

Withdrawal for Forest Service Recreation Area

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the minerals in the following described national forest lands in the Medicine Bow National Forest are hereby withdrawn from prospecting, location, entry, and purchase under the mining laws of the United States, in aid of programs of the Forest Service, Department of Agriculture, for utilization of the surface as a recreation area:

SIXTH PRINCIPAL MERIDIAN

Bobbie Thomson Campground

T. 14 N., R. 79 W.,
Sec. 22, SE¼SE¼SW¼;
Sec. 27, E½NE¼NW¼, W½NW¼NE¼, NE¼SE¼NW¼, and NW¼SW¼NE¼.

The areas described aggregate approximately 70 acres.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 17, 1964.

[F.R. Doc. 64-666; Filed, Jan. 23, 1964; 8:47 a.m.]

[Public Land Order 3311]

[Anchorage 059387]

ALASKA

Withdrawal for Forest Service Administrative Site

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to existing valid rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws, for use of the Forest Service as an administrative site in connection with the administration of the Tongass National Forest: